

**PLACER COUNTY SUPERIOR COURT  
FRIDAY, CIVIL LAW AND MOTION  
DEPARTMENT 1  
COMMISSIONER CHRISTINE S. DEHR  
TENTATIVE RULINGS FOR AUGUST 14, 2026 AT 8:30 A.M.**

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21. S-CV-0056838 SKORODUMOVA, DARIIA v. NYACK

**NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Defendants' Nyackk, LLC, Nyack, Inc., Kyle Wells, Stewart P. Wells, Stewart B. Wells, Nyaco, LLC, and Nyaco, Inc's Demurrer to the First Amended Complaint

The unopposed demurrer is sustained without leave to amend.

In the current request, the defendants demur to all 22 causes of action alleged in the first amended complaint (FAC). A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court has carefully reviewed all 22 causes of action alleged in the FAC. Even when giving the pleading the most liberal construction and deeming all the factual allegations to be true, plaintiffs fail to allege sufficient facts to support any of the claims. Thusly, the demurrer is properly sustained.

The court notes that plaintiffs have failed to oppose the demurrer, which is interpreted as plaintiffs having abandoned their claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) In light of this, the demurrer is sustained without leave to amend.

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